

25STCV24447 25STCV24447

County: los-angeles

Division: Civil Law and Motion

Department: 307

Hearing date: 2026-08-28

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Case Number: 25STCV24447 Hearing Date: August 28, 2026 Dept: 307

TIFFINY

BLACKNELL v. COUNTY OF LOS ANGELES, LOS ANGELES DISTRICT ATTORNEY'S OFFICE, et al. [25STCV24447]

DEMURRER

TO THE THIRD AMENDED COMPLAINT OF DEFENDANTS COUNTY OF LOS ANGELES AND LOS ANGELES COUNTY DISTRICT ATTORNEY'S OFFICE

MEET AND

CONFER: Parties comply with CCP 430.41

TIMELINE:

FEHA and Labor Code employment dispute

2002: Plaintiff Tiffany Blacknell ("Blacknell"

or "Plaintiff"), a 48-year-old, Black female, begins her career as an attorney for Defendant County of Los Angeles (the "County"). After serving as a public defender for many years, Blacknell is eventually hired by Defendant Los Angeles County District Attorney's Office ("LACDA") (collectively with the County, the "County Defendants"). Blacknell works her way up the ranks in LACDA and is ultimately hired as LACDA's chief of staff in February 2024.

During

her tenure, Blacknell "often served as the spokesperson" for LACDA and vocally opposed LACDA's historic failure to hold law enforcement accountable for police brutality. The publicity surrounding Blacknell's political views and her support of former DA George Gascón ("Gascón") caused her to become the target of hostility by those who

opposed DA Gascón's policies. As a result, Blacknell alleges she was subjected to personal attacks, often based on her race and gender. For example, for years, Deputy DA John Lewin ("Lewin")^[1] made repeated comments about Blacknell's character, professional reputation, job qualifications, and political affiliations via both social media posts and emails to Blacknell.

2023: Defendant Nathan Hochman ("Hochman")^[2], the current DA and a supervisor at LACDA, announces his campaign for County DA. At a press conference, Hochman publicly demands Blacknell's termination and brandishes a sign bearing a photograph of Blacknell's face. In subsequent interviews, Hochman also made comments about Blacknell's job qualifications and her "pro-criminal" reputation.

11/27/2024: Blacknell takes a medical leave of absence.

12/2/2024: While Blacknell is on leave, she receives a letter from a Director at the County's Department of Human Resources informing her that Hochman would be taking office the following day, that she would be removed from her position at LACDA, and that she would be reassigned to her previous position in the Public Defender's Office (which begins on 12/3/2024).

12/20/2024: Blacknell files a formal Government Claim against DA Hochman, Deputy DA Lewin, and the County Defendants, which was denied on 2/13/2025.

8/20/2025: Blacknell files the original Complaint, alleging causes of action for:

1. FEHA Discrimination (Age, Gender, and Race)
2. FEHA Harassment (Age, Gender, and Race)
3. FEHA Retaliation
4. Failure to Prevent Discrimination, Harassment, and Retaliation

5. Whistleblower Retaliation in Violation of Lab.
Code § 1102.5

6. Violation of Lab. Code § 232.5

7. Violation of Lab. Code § 1101-1102

8. Defamation

9. Compelled Self-Defamation

10.
Negligence

11.
Intentional
Infliction of Emotional Distress

12/3/2025: The Court hears the special motions to strike filed by the County Defendants, DA Hochman, and Deputy DA Lewin. The Court grants the motions, thereby striking the 8th and 9th causes of action against the County Defendants and Hochman and the 8th through 11th causes of action against Lewin.

1/2/2026: Blacknell files the First Amended Complaint ("FAC"), without first seeking leave of the Court. The FAC (and all later iterations of Blacknell's complaint) alleges the first through seventh causes of action that also appeared in the original Complaint.

1/5/2026: The Court holds a hearing on the demurrers of DA Hochman and the County Defendants, each filed on 12/1/2025. The Court, in lieu of ruling upon the demurrers, accepts Blacknell's FAC as the operative complaint and takes the demurrers off calendar as moot.

2/3/2026: The County Defendants file a second demurrer as to all causes of action in the SAC.

2/27/2026: In lieu of opposing the County Defendants' demurrer, Blacknell files an ex parte application for leave

to amend the FAC, which the Court grants on 3/5/2026.

3/5/2026: Blacknell files the Second Amended Complaint ("SAC") pursuant to the Court's order. Accordingly, the Court places the County Defendants' pending demurrer to the FAC off calendar.

3/24/2026: The County Defendants file a third demurrer to the second, third, and fifth through seventh causes of action in the SAC, which the court sustains with leave to amend on 4/24/2026.

5/14/2026: Blacknell files the operative Third Amended Complaint ("TAC"), alleging the following causes of action:

1. FEHA Discrimination (Age, Gender, and Race)
2. FEHA Harassment (Age, Gender, and Race)
3. FEHA Retaliation
4. Failure to Prevent Discrimination, Harassment, and Retaliation
5. Whistleblower Retaliation in Violation of Lab. Code § 1102.5
6. Violation of Lab. Code § 232.5
7. Violation of Lab. Code §§ 1101-1102

7/15/2026: The County Defendants file this demurrer to the TAC, which is followed by Blacknell's Opposition (8/20/2026) and the County Defendants' Reply (8/25/2026).

8/25/2026: The Court holds a hearing on the County Defendants' Special Motion to Strike the TAC and takes the motion under submission.

TENTATIVE

RULING: THE COUNTY DEFENDANTS' DEMURRER TO THE THIRD AMENDED COMPLAINT is OVERRULED in part, SUSTAINED with LEAVE TO AMEND in part, and SUSTAINED without leave to

amend in part.

DEMURRER

The

County Defendants demur to each cause of action in the TAC pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f).[3]

A. 1st Cause of Action: FEHA

Discrimination — OVERRULED

Under

Code Civ. Proc. § 430.41, subd. (b) “[a] party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint ... on grounds that could have been raised by demurrer to the earlier version of the complaint.” (Code Civ. Proc., § 430.41, subd. (b).) Here, the County Defendants previously filed a demurrer to the SAC, which contained the same causes of action now re-alleged in the TAC. In this prior demurrer, however, the County Defendants did not challenge either the first or fourth causes of action, despite having the opportunity to do so, thereby conceding that these causes of action were adequately pled.

Blacknell

objects to the County Defendants’ untimely subsequent demurrer to the discrimination-based claims in the TAC. (Opp., at pp. 3, 6.) To an extent, the County Defendants effectively concede that the same issues are present in the TAC that were present (but unchallenged) in the SAC. (Mot., at p. 13 [“...as has plagued all previous iterations of her complaint...”].) While the County Defendants point to “new” allegations in Paragraphs 33 to 35 of the TAC (including the copy of the Notice of Removal letter), these additional allegations merely clarify— rather than substantively alter— the factual basis for Plaintiff’s discrimination theories. (Rep., at p. 8.) As discussed below, these additional factual allegations provide clarity on the nature of the alleged adverse employment action. (See *infra*, Section I.C.) However, they do not alter the nature of the discrimination-based causes of action such that the County Defendants could not have previously challenged these claims in the SAC.

As a

result, the Court finds that the County Defendants’ demurrer to Plaintiff’s

discrimination and failure to prevent claims is untimely in violation of Code Civ. Proc. § 430.41, subd. (b). Accordingly, the Court declines to address the merits of these untimely arguments and OVERRULES the County Defendants' demurrer to Blacknell's first cause of action for discrimination in violation of FEHA.

B. 2nd Cause of Action: FEHA

Harassment — SUSTAINED with LEAVE TO AMEND

Blacknell's

FEHA harassment claim against the County Defendants is insufficiently pled.

Under Gov. Code § 12940, subd. (j), "'harassment' in the workplace may take the form of 'discriminatory intimidation, ridicule and

insult' that is

'sufficiently

severe or pervasive to alter the conditions of the victim's employment and

create an abusive working environment.'" (Serri v. Santa Clara University (2014) 226 Cal.App.4th 830, 869.) "A

showing that harassment created a hostile work environment requires a showing that the

defendant's conduct would have interfered with a reasonable employee's

work performance and would have seriously affected the psychological well-being

of a reasonable employee.'" (Citation.) (Martin

v. Board of Trustees of California State University (2023) 97

Cal.App.5th 149, 170 (Martin).) "[H]arassing conduct

takes place 'outside

the scope of necessary job performance,

conduct presumably engaged in for personal gratification, because of meanness or bigotry, or for other personal motives.'

(Citation.)" (Ibid.)

Thus, "[h]arassment is not conduct of a type necessary for

management of the employer's business or performance of the supervisory

employee's job." (Reno

v. Baird (1998) 18 Cal.4th 640, 646.)

Here,

the County Defendants first argue that Plaintiff's TAC fails to identify any

harassing conduct by the County, let alone conduct based on Blacknell's age, gender,

or race. One issue with the TAC is that Blacknell does not clearly distinguish

between the harassing conduct of the general public and the harassing conduct

by the County's employees or supervisors. For example, Plaintiff alleges that

her publicity as LACDA's Chief of Staff "caused her to be the personal target

of hostility from those who opposed the policies of the duly elected official Gascón,” although it is not clear that this online hostility was limited to affiliates of the County Defendants. (TAC, ¶ 15.) Additionally, Blacknell’s allegations pertaining to the social media activity from viewers on Deputy DA Lewin’s posts are immaterial to the County Defendants’ liability if those viewers are not employed by the County Defendants. (Ibid.) The County Defendants cannot be presumed liable for any and all public hostility where Blacknell does not specifically delineate conduct by the County’s employees.

Focusing

only on the allegations that are specifically connected to the County’s staff members, Blacknell alleges that Deputy DA Lewin engaged in a “toxic” pattern of social media comments, in which he consistently referred to Blacknell as “this woman” “an abomination,” “uneducated,” “corrupt,” “crazy,” “police hating nut job,” “unqualified,” and a “quisling” who supported Hamas, characterized Blacknell’s work as “race hustling,” and stated that “two dogs were more qualified to be a prosecutor.” (TAC, ¶¶ 15, 19, 23.) Blacknell further alleges that Deputy DA Lewin sent her “threatening and intimidating messages through the County email server,” which resulted in his reprimand for violating the County’s policies and disrupting the workplace. (Id. ¶¶ 17, 23.) In addition, Blacknell now identifies three additional comments by LACDA employees who participated in the social media attacks, including Ms. Hardiman (who referred to Blacknell as a “stripper”), Ms. Decorse (who called Blacknell an “overseer”), and Ms. Ruby (who characterized Blacknell as a “gangster”). (Id. ¶ 23.)[4]

With

respect to the harassing comments made by Deputy DA Lewin, this Court has already determined that Blacknell’s factual narrative seems to indicate that she was targeted based on her political views, her alignment with former DA Gascón, and her policy preferences, as opposed to any protected category under FEHA. (Minute Order, 4/24/2026.) Blacknell only identifies a single comment by Deputy DA Lewin which explicitly refers to Plaintiff’s protected characteristics (“this woman”), but without more context, the isolated reference to an employee by her gender does not convert the underlying motive for the comment to one of personal gratification, meanness, or bigotry on the basis of Blacknell’s gender. (See Martin, supra, 97 Cal.App.5th at p. 170.) Any racial or gender-based insults within Deputy DA Lewin’s broader commentary appears to be merely incidental to Lewin’s politically motivated commentary. In the TAC, Blacknell adds no specific examples of harassing comments by Deputy DA

Lewin that were not already identified in the SAC to demonstrate that Lewin's harassing conduct was motivated by Blacknell's age, gender, or race.

With

respect to the harassing comments made by Ms. Hardiman, Ms. Decorse, and Ms. Ruby, although these comments hypothetically might have been intended to target Blacknell's gender ("stripper") or race ("overseer" and "gangster"), any such inference is merely speculative given the lack of factual context for these comments as well as the conflicting political motivation for the online harassment which Blacknell repeatedly concedes in the TAC. Specifically, Blacknell admits in the TAC that her high-level role at LACDA and her political affiliations and policy preferences are what motivated the online attacks against her.[5] When

considering the isolated comments made by Ms. Hardiman, Ms. Decorse, and Ms. Ruby against this larger context of her co-workers' political animus, Blacknell's presumption that her harassers were also motivated by animus towards her race and gender is merely speculative and conclusory. Tellingly, the TAC omits any factual background explaining how these words were used in context. By highlighting one-word snippets isolated from their larger context, Blacknell precludes the Court from inferring that her age, race, and gender (as opposed to her political affiliations) were a substantial motivating factor in these limited comments. (Martin, *supra*, 97 Cal.App.5th at p. 162 ["FEHA does not require proof that discriminatory animus was a 'but for' cause of an adverse action, only that it was a 'substantial motivating factor.'"].)

Moreover,

the County Defendants also argue that Blacknell fails to adequately allege that they had actual or constructive knowledge of the online harassment toward Blacknell by any non-supervisory employees. "When the harasser is a supervisor, the employer is strictly liable for the supervisor's actions." (Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 707.) Deputy DA Lewin's comments, for example, fall under this category because his role as a Deputy DA at LACDA was supervisory in nature. By contrast, "[w]hen the harasser is a nonsupervisory employee, employer liability turns on a showing of negligence." (Ibid.) That is, "[h]arassment of an employee... by an employee, other than an agent or supervisor, shall be unlawful if the entity, or its agents or supervisors, knows or should have known of this conduct and fails to take immediate and appropriate corrective action." (Gov. Code, § 12940, subd. (j)(1).) Ms. Hardiman, Ms. Decorse, and Ms. Ruby are not specifically

identified as supervisory employees and the TAC is uncertain as to whether the County Defendants were aware of these employees' online commentary. Unlike Deputy DA Lewin, who utilized the County's internal email server to harass Blacknell, it is not clear that these three LACDA employees' comments on social media would have been directly accessible by the County. (TAC, ¶ 23.) Further, while Blacknell expressly pleads that the County was aware of Deputy DA Lewin's emails and that she had filed numerous complaints and reported violations of the County's equity policies (seemingly related to Lewin), Blacknell's notice-related allegations pertaining to the other employees are vague. (Id. ¶¶ 20-21, 23.) At no point does Blacknell specifically allege that the County Defendants' supervisory staff knew about Ms. Hardiman, Ms. Decorse, and Ms. Ruby's online comments from their private social media accounts or that Blacknell's complaints to the County sufficiently identified the content and perpetrators of such comments such that the County can be held liability under a negligence standard.

Therefore,
the County Defendants' demurrer to Blacknell's second cause of action for FEHA harassment is SUSTAINED with LEAVE TO AMEND. Leave to amend this claim is limited to the extent that Blacknell can add factual context for the social media commentary by LACDA employees Hardiman, Decorse, and Ruby which demonstrates their comments were motivated by gender- or race-based animus, as opposed to political discourse. To the extent that such facts exist, Blacknell is instructed to add allegations providing the full context of these employees' online comments into the pleading itself.

C. 3rd and 5th Causes of
Action: FEHA Retaliation and Whistleblower Retaliation in Violation of Lab.
Code § 1102.5 — SUSTAINED without leave to
amend

Plaintiff's
retaliation claims under FEHA and the Labor Code are insufficiently
pled. To establish a claim for FEHA retaliation, a plaintiff must demonstrate:
(1) that plaintiff engaged in protected activity; (2)
that defendants subjected
plaintiff to adverse employment action(s); (3) that plaintiff's protected activity was a substantial
motivating reason for defendants' decision to impose the adverse employment action; (4)
that plaintiff was harmed; and (5) that the adverse employment action was a
substantial factor in causing plaintiff's harm. (CACI No. 2505; Yanowitz v. L'Oreal USA, Inc. (2005)

36 Cal.4th 1028, 1042 (Yanowitz).) For example, under Gov. Code §12940, subd. (h), it is unlawful for “any employer ... or person to discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under [FEHA] or because the person has filed a complaint, testified, or assisted in any proceeding under [FEHA].” (Miller v. Department of Corrections (2005) 36 Cal.4th 446, 472.) Likewise, under Lab. Code § 1102.5, subd. (b), employers are prohibited from retaliating against employees for disclosing a violation of federal or state law. (Lab. Code § 1102.5, subd. (b).) To establish a claim for whistleblower retaliation claim under Lab. Code § 1102.5, a plaintiff must demonstrate that: (1) plaintiff disclosed information to a governmental or law enforcement agency with authority over plaintiff; (2) plaintiff had reasonable cause to believe that the information disclosed a violation of statute, rule, or regulation; (3) defendants subjected plaintiff to an adverse employment action; (4) plaintiff’s disclosure was a contributing factor in defendants’ decision to impose the adverse employment action on plaintiff; (5) plaintiff was harmed; and (6) defendants’ conduct was a substantial factor in causing plaintiff’s harm. (CACI No., 4603.)

Here, the County Defendants argue that Blacknell has not adequately identified an adverse employment action taken against her by the County Defendants because her concurrent allegations of a “compulsory transfer,” “demotion,” and “termination” are internally inconsistent. (TAC, ¶¶ 38(j), 39(a), 83-84.) Even so, Plaintiff has clarified the nature of the County’s personnel decision by attaching a copy of her “Notice of Removal” from the County to the TAC. (Id. ¶¶ 33-35.) The letter clarifies that her “tenure in the unclassified position of Deputy District Attorney” with the County Defendants “will be terminated” pursuant to Los Angeles County Code section 2.07.010 but that Blacknell was “being returned to [her] classified status...” and placed in a Deputy Public Defender IV position. (Id. ¶ 35) This letter resolves the uncertainty present in the SAC pertaining to the nature of the alleged adverse action and indicates material changes to the terms, conditions, and privileges of Blacknell’s employment.

Notwithstanding, the issue with Blacknell’s retaliation claims is that she has failed to cure the defects pertaining to her allegations regarding her “protected activities.” Blacknell continues to vaguely allege that she “made protected complaints”

regarding violations of the County's equity policies and violations of Title 42 § 2000e(3), Gov. Code § 12900, et seq. (FEHA), Lab. Code §§ 1101-1102 and 232.5, Pen. Code §§ 1172.6 and 745, and/or the California Constitution..." (TAC, ¶¶ 20-21, 37(d), 73.) Like in the SAC, however, Blacknell still fails to support these largely conclusory allegations with any specific factual detail about the content or timing of her complaints.

The

Court's previous ruling on the County Defendants' demurrer to the SAC expressly indicated that Blacknell must allege more specific factual detail identifying the timeline, nature, content, and scope of her "numerous" complaints as well as the County Defendants' knowledge of these complaints. (See Minute Order, 4/24/2026.) Blacknell fails to cure these defects in the TAC. At most, the TAC includes a few additional vague allegations that Blacknell disclosed "the harassment that she was experiencing" and "reported to County representatives," including County Counsel, Tim Pescatello, Lisa Garrett, and Dawyn Harrison, regarding "violations of County and LACDA Officer workplace protocol." (TAC, ¶ 38(h).) Even assuming that Blacknell's complaints were protected under both FEHA and the Labor Code, Plaintiff's vague allegations that she reported harassment and violations of workplace policies, without identifying the specific content of her disclosures or the dates of these disclosures in comparison to her reassignment are insufficient to support an inference that there was a causal connection between any protected disclosures and the alleged adverse employment action. (Yanowitz, *supra*, 36 Cal.4th at p. 1046, italics added ["Standing alone, an employee's unarticulated belief that an employer [has violated FEHA] will not suffice to establish protected conduct for the purposes of establishing a prima facie case of retaliation, where there is no evidence the employer knew that the employee's opposition was based upon a reasonable belief that the employer was engaging in [FEHA violations].".])

Because Blacknell's retaliation claims remain defective with respect to the protected nature of her disclosures to the County and their causal connection to any alleged adverse employment action, the Court finds Blacknell's retaliation claims are still insufficiently pled in the TAC. Therefore, the County Defendants' demurrer to the third and fifth causes of action is SUSTAINED without leave to amend.

D. 4th Cause of Action: FEHA Failure to

Prevent Discrimination, Harassment, and Retaliation — OVERRULED in part (re: discrimination claim), SUSTAINED with LEAVE TO AMEND in part (re: harassment claim), and SUSTAINED without leave to amend in part (re: retaliation claim)

With

respect to Blacknell's failure to prevent discrimination claim, the Court adopts its above analysis with respect to the first cause of action for FEHA discrimination and finds that the County Defendants' demurrer is untimely pursuant to Code Civ. Proc. § 430.41, subd. (b). (See *infra*, Section I.A.) The County Defendants had an opportunity to challenge the entire failure to prevent cause of action in the SAC and failed to do so. Accordingly, the Court declines to address the merits of Blacknell's failure to prevent discrimination claim and OVERRULES the County Defendants' demurrer to Blacknell's fourth cause of action to the extent it alleges failure to prevent discrimination.

With

respect to Blacknell's failure to prevent harassment and retaliation claims, the Court SUSTAINS the County Defendants' demurrer because these claims are derivative of Blacknell deficient FEHA harassment and FEHA retaliation claims. "[T]here's no logic that says an employee who has not been discriminated against can sue an employer for not preventing discrimination that didn't happen, for not having a policy to prevent discrimination when no discrimination occurred....' Employers should not be held liable to employees for failure to take necessary steps to prevent such conduct, except where the actions took place and were not prevented.'" (Trujillo v. North County Transit Dist. (1998) 63 Cal.App.4th 280, 289.) In other words, a "failure to prevent" claim cannot be maintained against an employer where the employee cannot establish any underlying discrimination, retaliation, or harassment. (*Ibid.*) In this case, because Blacknell fails to sufficiently allege her claims for harassment and retaliation in violation of FEHA, the County Defendants cannot be held liable for the failure to prevent such conduct as a matter of law.

While

the demurrer to these claims must be sustained, the Court grants leave to amend with respect to Blacknell's failure to prevent harassment claim to the extent that Blacknell opts to amend her underlying claim for FEHA harassment. (See *infra*, Section I.B.) By contrast, leave to amend Blacknell's failure to prevent

retaliation claim is not warranted. (See *infra*, Section I.C.)

E. 6th Cause of Action: Violation of

Lab. Code § 232.5 — SUSTAINED without leave to amend

Plaintiff's

claim for violation of Lab. Code § 232.5 ("section 232.5") is insufficiently pled. Under section 232.5, employers may not:

(a)

Require, as a condition of employment, that an employee refrain from disclosing information about the employer's working conditions.

(b)

Require an employee to sign a waiver or other document that purports to deny the employee the right to disclose information about the employer's working conditions.

(c)

Discharge, formally discipline, or otherwise discriminate against an employee who discloses information about the employer's working conditions.

(Lab.

Code, § 232.5.) To succeed on a claim under section 232.5, a plaintiff must "prove the disclosure of his working conditions was a 'substantial motivating reason' for terminating his employment" or otherwise retaliating against the plaintiff as prohibited by this section. (*Zirpel v. Alki David Productions, Inc.* (2023) 93 Cal.App.5th 563, 578.)

Here,

like in the SAC, Blacknell's sixth cause of action is based on the bare, conclusory allegations that the County violated section 232.5 by retaliating against Blacknell, discriminating against Blacknell, harassing Blacknell, and otherwise taking adverse employment actions against her "by terminating her position [at LACDA] and transferring her at a reduced authority and pay grade to another agency with the County." (TAC, ¶ 78.) Blacknell vaguely alleges that these actions were motivated by "her disclosures in the form of complaints about the pervasive harassing conduct..." described above. (*Ibid.*)

For the same reasons outlined above with respect to Blacknell's retaliation claims, the TAC fails to allege adequate factual details to conclude when or what Blacknell disclosed to the County Defendants about her working conditions. Blacknell's failure to cure these defects in the TAC, which continues to omit allegations regarding the content and timing of her alleged complaints, precludes the inference of a causal relationship between Blacknell's disclosures and any purported adverse action.

Even

further, Blacknell effectively concedes that the December 2, 2024 reassignment occurred "because [DA Hochman] was taking office," which conflicts with her contention that she was terminated from her position at LACDA because of her complaints about LACDA's working conditions. (Opp., at p. 18.) Given the strong temporal relationship between the change in tenure of the DA and Blacknell's reassignment, Blacknell's vague allegations that she complained about Deputy DA Lewin's online harassment on unspecified dates are inadequate to raise a competing inference that her reassignment was motivated by retaliation.

Finally,

the County Defendants argue that they are immune from liability under section 232.5 based on principles of governmental immunity. (See *Stone v. Alameda Health System* (2024) 16 Cal.5th 1040, 1053 ["...absent express words to the contrary, governmental agencies are not included within the general words of a statute."]; *Campbell v. Regents of University of California* (2005) 35 Cal.4th 311, 330 ["Generally, however, provisions of the Labor Code apply only to employees in the private sector unless they are specifically made applicable to public employees."].) Plaintiff fails to identify any language from section 232.5 that indicates that the Legislature intended to hold public employers, like the County Defendants, liable for violations of section 232.5. In fact, Plaintiff's Opposition is entirely silent on the County Defendants' governmental immunity defense.

Therefore,

the County Defendants' demurrer to Blacknell's sixth cause of action in the TAC is SUSTAINED without leave to amend.

F. 7th Cause of Action: Violation of

Lab. Code § 1101-1102 — SUSTAINED without leave to amend

Blacknell's political affiliation
discrimination claim is insufficiently pled. Lab. Code §§
1101 and 1102 "serve to protect the
fundamental right of employees in general to engage in political activity
without interference by employers." (Gay Law
Students Assn. v. Pacific Tel. & Tel. Co. (1979) 24
Cal.3d 458, 487 (Gay Law Students Assn.), citing Fort v. Civil
Service Commission (1964) 61 Cal.2d 331, 335.) Under Lab.
Code § 1101 ("section 1101"):

No employer shall make, adopt, or enforce any
rule, regulation, or policy:

1

(a) Forbidding or preventing employees from
engaging or participating in politics or from becoming candidates for public
office.

2

(b) Controlling or directing, or tending to
control or direct the political activities or affiliations of employees.

(Lab. Code, § 1101.) Under Lab. Code
§ 1102 ("section 1102"), "[n]o
employer shall coerce or influence or attempt to coerce or influence his
employees through or by means of threat of discharge or loss of employment to
adopt or follow or refrain from adopting or following any particular course or
line of political action or political activity." (Lab. Code, § 1102.) "The term 'political activity' connotes the espousal of a
candidate or a
cause, and some degree of action to promote the acceptance thereof by other
persons." (Gay Law
Students Assn., supra, 24 Cal.3d at p. 487, quoting Mallard
v. Boring (1960) 182 Cal.App.2d 390,
395.) California and federal courts have applied the policies
underlying sections 1101 and 1102 as the basis for prohibiting
employers from terminating employees for political
motive. (Ali v. L.A. Focus Publication (2003) 112 Cal.App.4th 1477, 1487
disapproved of on other grounds by Reid v. Google, Inc. (2010) 50

Cal.4th 512; see Couch v.

Morgan Stanley & Co. Inc. (9th Cir. 2016) 656 Fed.Appx. 841, 843, applying California law.)

Here, like Plaintiff's section 232.5 claim,

the County Defendants argue that Plaintiff's claims for violation of sections 1101 and 1102 are barred by

governmental immunity. As discussed above, governmental tort liability must be expressly authorized by statute. (See supra, Section I.D.) California courts

have determined that, unless otherwise specified by statute, the Labor Code (including

section 1101) applies only to private employer-employee relationships. (Eldridge v. Sierra View Loc. Hosp. Dist. (1990) 224 Cal. App. 3d 311, 317, fn. 2 ["No

case has applied [section 1101] to public employment."].) Neither section 1101 nor

section 1102 expressly includes public entities, such as the County Defendants,

within the definition of "employer." (Lab. Code, §§ 1101, 1102.) For example, although Lab. Code § 1106 extends liability under several

provisions of Chapter 5 to public employees, sections 1101 and 1102 are omitted

from this list of covered claims. Moreover, the Legislature has created a separate

statutory framework governing the political activities of public employees

under Gov. Code §§ 3201-3203. This alternative framework expressly supersedes "all

provisions on this subject in the general law of this state..." indicating that

the Legislature did not intend political discrimination claims by public

employees to be governed by the Labor Code. (Gov. Code § 3201.)

In any

event, Plaintiff also fails to allege sufficient facts to support the elements

of her claims under sections 1101 and 1102. First, the TAC still fails to identify

any "rule, regulation, or policy" imposed by the County Defendants which

prevented or controlled employees' political participation, activities, or

affiliations. (Lab. Code, § 1101.) Thus, Blacknell cannot support a

viable claim for the violation of section 1101.

Second, the TAC still fails to identify any

threats of "discharge or loss of employment" made by the County Defendants in

attempt to coerce or influence Plaintiff's participation or restraint from

political advocacy. (Lab. Code, § 1102.) At most, Blacknell

alleges that she was reassigned from her position at LACDA to a different

position at the Public Defender's Office. (Compl., ¶¶ 83-84.) While Plaintiff characterizes her

reassignment as a "termination," the facts alleged in the TAC and the Notice of

Removal make clear that Plaintiff was merely removed from her specific position

at the County pursuant to Los Angeles County Code §

2.07.010, which provides that Blacknell's position was intended to "serve[] at the pleasure of his or her appointing authority and may be removed at any time at the discretion of the appointing authority, with or without cause." In other words, Plaintiff was not "discharged" or "terminated" from her employment with the County as a whole, she was merely reassigned to an alternative position within the scope of the at-will privileges of Los Angeles County Code §

2.07.010. The Second District Court of Appeal has held that an employee's reassignment to his prior position for the County does not constitute a "discharge from county service" where there is no "separation from service for cause." (Shoemaker v. County of Los Angeles (1995) 37 Cal.App.4th 618, 627.) Even if DA Hochman's decision to reassign Blacknell to an alternative County position was politically motivated, Plaintiff cannot demonstrate the requisite "discharge" or "termination" contemplated by section 1102. (Turner v. Anheuser-Busch, Inc. (1994) 7 Cal.4th 1238, 1247 ["a demotion, even when accompanied by reduction in pay, does not by itself trigger a constructive discharge."].)

Therefore,

the County Defendants' demurrer to Blacknell's seventh cause of action in the TAC is SUSTAINED without leave to amend.

Defendants are to serve notice of

ruling. This tentative ruling ("TR")

shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR

emailed to counsel and posted to court website on 8/27/26 at 2:

[1] Deputy DA Lewin was removed as a defendant in this action on 5/14/2026.

[2] Although previously dismissed from this lawsuit, DA Hochman appears to be named again as a defendant in the TAC, although it is unclear if this was a typographical error.

[3] As a preliminary note, the Court finds that the TAC contains no support for Blacknell's age-based allegations in any cause of action and considers her age-based discrimination and age-based harassment claims to have been abandoned.

[4] As this Court has previously held in its ruling on the County Defendant's demurrer to the SAC, DA Hochman's press comments predating his election to the DA's office cannot be the subject of a workplace harassment claim against the County Defendants because he was not yet employed by the County Defendants. (See Minute Order, 4/24/2026.)

[5] For example, Blacknell alleges that her position at LACDA "placed her in the crosshairs for attack by those within [LACDA] who opposed Gascón, his policies, and any efforts to align [LACDA] with the interests of the community that it exists to serve" and that her "vocal opposition to police brutality and the historic failure of [LACDA] to hold law enforcement accountable... triggered fierce backlash from those that opposed [LACDA's] evolving values under DA Gascón." (TAC, ¶¶ 13, 15.) Blacknell admits that she was targeted "because of her perceived political association with [DA] Gascón, current [DA] Hochman's political opponent, and because of her vocal opposition to the historic lack by [the County Defendants] to redress the persistent instances of police brutality and shootings in Los Angeles County." (Id. ¶ 38(a).) Blacknell also concedes that her "advocacy against [LACDA's] troubling history of failing to prosecute police officers for unjustified officer-involved shootings, as well as her support for DA Gascón's initiatives to address these injustices, put her at the center of a retaliatory storm." (Id. ¶ 38(c).) Blacknell further alleges that the alleged hostile work environment was "directly connected to [her] efforts to align [LACDA] with the interests of the community that she believed had been underserved by prior administrations. (Id. ¶ 38(g).)